

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF SHENDAKOV AND OTHERS v. RUSSIA

(Applications nos. 6493/18 and 11 others –
see appended list)

JUDGMENT

STRASBOURG

9 February 2023

This judgment is final but it may be subject to editorial revision.



In the case of Shendakov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 19 January 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. On the different dates the applicants were taken to police stations as administrative suspects of offences related to public events. They were subsequently administratively convicted for participation in different public events in Moscow.

5. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

7. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention.

8. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an "exceptional case" and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, and *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018), and that the use of the escort measure be properly documented (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017, and *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019). The authorities' failure to comply with those requirements, in the Court's view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019; *Kalyapin*, cited above, §§ 76-79; and *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).

9. Having examined all the material submitted to it and having taken into account the issue of compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints.

10. It discerns nothing in the official records submitted for it to conclude that recourse to such procedures was justified, as required by Russian law. In particular, the applicants were taken to the police station as administrative suspects, whereas there was no evidence or assessment that it was impracticable, on the spot, to compile the offence records and to achieve the objectives set out in the Code of Administrative Offences (CAO), that is to establish the suspects' identity (*Korneyeva*, cited above, §§ 34-36). It concludes that the national authorities failed to comply with the applicable rules of domestic procedure and considers that the applicants' escorting, arrest and detention were not "in accordance with a procedure prescribed by law".

11. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the CAO, *Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013, and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016, concerning disproportionate measures taken by the authorities against participants of public assemblies, and *Yartsev v. Russia*, no. 16683/17, §§ 28-38, 20 July 2021, related to the administrative conviction for waving banners with slogans that did not correspond to the declared aims of the public event).

14. In view of the above findings, the Court considers that there is no need to deal separately with the remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings and alleged restrictions on the right to examine witnesses, as well as with the complaint under Article 2 of Protocol No. 7 to the Convention about lack of suspensive effect of an appeal against the sentence of administrative detention.

IV. REMAINING COMPLAINTS

15. The applicants in applications nos. 31453/20 and 36564/20 also raised complaints under other provisions of the Convention. The Court considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention. It follows that this part of the two applications must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

17. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia* [Committee], no. 1253/04 and 2 others, § 96, 11 December 2014, and, as a recent example, *Akhtyamov and Others v. Russia* [Committee], no. 17105/18 and 8 others, §§ 15-16, 10 October 2022), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the unlawful detention (deprivation of liberty) and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *holds* that there is no need to examine the remaining complaints under Article 6 of the Convention, as well as the complaint under Article 2 of Protocol No. 7 to the Convention, and *dismisses* the remainder of applications nos. 31453/20 and 36564/20 as inadmissible;

3. *Holds* that these applications disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention and/or its Protocols as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 9 February 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects others than those mentioned in the paragraph 10 of the present judgment	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	6493/18 28/01/2017 and 31453/20 08/07/2020	**Mikhail Anatolyevich SHENDAKOV** 1965	Memorial Human Rights Centre Moscow and Gilmanov Mansur Idrisovich Podolsk	1) 29/01/2017 at 2.10 p.m. 2) 22/06/2020 at 6.30 p.m. 3) 03/10/2020 at 4.50 p.m.	1) 29/01/2017 at 5.20 p.m. 2) 23/06/2020 at 12.30 p.m. 3) 05/10/2020 (unknown time)	Detention as an administrative suspect: no evidence / assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings, detailed below under Article 11. Art. 10 (1) - restriction on the right to freedom of expression. Manifestation on 29/01/2017, Art. 20.2 § 5 of CAO, fine of RUB 10,000; Moscow City Court, 28/07/2017: The applicant waved a banner "Putin is the traitor of the Motherland and the enemy of the Russian people" that, as the courts held, did not correspond to the declared aims of the approved event (see *Fáber v. Hungary*, no. 40721/08, §§ 32-59, 24 July 2012, and *Yartsev v. Russia*, no. 16683/17, §§ 28-38, 20 July 2021). Art. 11 (2) - disproportionate measures against participants of public assemblies:	5,000

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							1) Political manifestation, on 22/06/2020, Art. 20.2 § 8 of CAO, 30 days of administrative detention, Moscow City Court, 30/06/2020. 2) Meeting with Members of Moscow Parliament concerning the issue of tree-felling, on 03/10/2020, Art. 20.1 § 1 of CAO, 7 days of administrative detention, Moscow City Court, 08/10/2020.	
2.	30217/20 13/07/2020	**Yelizabetta KORSI** 1996	Memorial Human Rights Centre Moscow	12/06/2019 at 2.40 p.m.	12/06/2019 at 7.15 p.m.	Detention as an administrative suspect: no evidence / assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Moscow City Court, 18/10/2019. Art. 11 (2) - disproportionate measures against participants of public assemblies - Manifestation in support of I. Golunov, on 12/06/2019. Art. 20.2 § 6.1 of CAO, fine of RUB 10,000; Moscow City Court, 18/10/2019.	3,900
3.	33804/20 31/07/2020	**Daniil Mikhaylovich POSPELOV** 1989	Memorial Human Rights Centre Moscow	12/06/2019 at 12.30 p.m.	12/06/2019 at 10.30 p.m.	No written record of the applicant's detention (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017). Detention as an administrative suspect: no evidence / assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Moscow City Court, 06/11/2019.	3,900

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						(Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; and *Tsvetkova and Others*, cited above, §§ 121-22).	Art. 11 (2) - disproportionate measures against participants of public assemblies - Manifestation in support of I. Golunov, on 12/06/2019. Art. 20.2 § 6.1 of CAO, fine of RUB 10,000; Moscow City Court, 06/11/2019.	
4.	33818/20 31/07/2020	**Andrey Andreyevich MELNIKOV** 1991	Memorial Human Rights Centre Moscow	03/08/2019 at 5.00 p.m.	04/08/2019 at 5.00 a.m.	Detention as an administrative suspect: no evidence / assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; and *Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Moscow City Court, 06/11/2019. Art. 11 (2) - disproportionate measures against participants of public assemblies - Manifestation for fair elections to Mosgorduma, on 03/08/2019. Art. 20.2 § 5 of CAO, fine of RUB 15,000, Moscow City Court, 06/11/2019.	3,900
5.	35206/20 11/08/2020	**Denis Vladimirovich LIPATOV** 1994	Memorial Human Rights Centre Moscow	03/08/2019 at 6.55 p.m.	04/08/2019 at 01.00 a.m.	Detention as an administrative suspect: no evidence / assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; and *Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Moscow City Court, 20/11/2019. Art. 11 (2) - disproportionate measures against participants of public assemblies - Manifestation for fair elections to Mosgorduma; on 03/08/2019; Art. 20.2 § 5 of	3,900

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							CAO, fine of RUB 10,000, Moscow City Court, 20/11/2019.	
6.	36564/20 21/07/2020	**Aleksandr Sergeyevich BOGACHEV** 1987	Memorial Human Rights Centre Moscow	27/07/2019 at 01.10 p.m.	27/07/2019 at 7.35 p.m.	Detention as an administrative suspect: no evidence / assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; and *Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - fine of RUB 10,000, Moscow City Court, 22/10/2019.	3,900
7.	36921/20 07/08/2020	**Veronika Vladimirovna FAYNBERG** 1997	Memorial Human Rights Centre Moscow	12/06/2019 at 2.45 p.m.	12/06/2019 at 6.30 p.m.		Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Moscow City Court, 08/11/2019. Art. 11 (2) - disproportionate measures against participants of public assemblies - Manifestation in support of the I. Golunov, on 12/06/2019; Art. 20.2 § 6.1 of CAO, fine of RUB 10,000; Moscow City Court, 08/11/2019.	3,900
8.	37597/20 18/08/2020	**Stanislav Alekseyevich GAMYGIN** 1996	Memorial Human Rights Centre Moscow	12/06/2019 at 2.00 p.m.	12/07/2020 at 23.00 p.m.	Detention as an administrative suspect: no evidence / assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; and *Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Moscow City Court, 26/02/2020. Art. 11 (2) - disproportionate measures against participants of public assemblies - Manifestation	3,900

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							in support of I. Golunov, on 12/06/2019; Art. 20.2 § 6.1 of CAO, fine of RUB 10,000; Moscow City Court, 26/02/2020.	
9.	40969/20 27/08/2020	**Dmitriy Nikolayevich TSAREV** 1986	Levenberg Yeva Viktorovna Moscow	27/07/2019 at 01.50 p.m.	28/07/2019 at midnight	No written record of the applicant's detention (see *Timishev*, cited above, § 21). Administrative offence record was drawn not during the applicant's detention, but two days later. Detention as an administrative suspect: no evidence / assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; and *Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Moscow City Court, 04/03/2020. Art. 11 (2) - disproportionate measures against participants of public assemblies - Manifestation for fair elections to Mosgorduma, on 27/07/2019, Art. 20.2 § 5 of CAO. fine of RUB 10,000, Moscow City Court, 04/03/2020.	3,900
10.	41214/20 30/08/2020	**Nikolay Aleksandrovich SHERENOV** 1993	Levenberg Yeva Viktorovna Moscow	27/07/2019 at 03.30 p.m.	27/07/2019 at 09.05 p.m.	No written record of the applicant's detention (see *Timishev*, cited above, § 21). Administrative offence record was drawn not during the applicant's detention, but three days later. Detention as an administrative suspect: no evidence / assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; and *Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Moscow City Court, 02/12/2019. Art. 11 (2) - disproportionate measures against participants of public assemblies - Manifestation for fair elections to Mosgorduma, on 27/07/2019, Art. 20.2 § 5 of CAO. fine of RUB 15,000, Moscow City Court, 02/12/2019	3,900

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11.	44829/20 19/09/2020	**Tatyana Viktorovna MOROZ** 1957	Gilmanov Mansur Idrisovich Podolsk	20/08/2020 at 8.20 p.m.	21/08/2020 (unclear and time, apparently, until the first instance hearing on the applicant's administrative case)	Detention as an administrative suspect: no evidence / assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; and *Tsvetkova and Others*, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal in view of the absence of a prosecuting party in administrative offence proceedings - Moscow City Court, 25/08/2020. Art. 11 (2) - disproportionate measures against participants of public assemblies - Manifestation against poisoning of A. Navalnyy, on 20/08/2020, administrative detention of 5 days, Art. 19.3 § 1 of CAO, Moscow City Court, 25/08/2020.	3,900

[1] Plus any tax that may be chargeable to the applicants.